

TENTATIVE RULING

Case: **Meritage Homes of California, Inc. v. HBT of Winters Highlands, LLC**

Case No. CV2023-1612

Hearing Date: **May 7, 2026** **Department Fourteen** **9:00 a.m.**

Petitioner Meritage Homes of California, Inc.’s petition to confirm contractual arbitration award is **DENIED WITHOUT PREJUDICE**. (Code Civ. Proc., § 1280 et seq.) The Court finds that petitioner fails to provide any legal argument [with citation to authority] in support of this motion. (Cal. Rules of Court, rules 3.1113(b), 3.1114; see *Quantum Cooking Concepts, Inc. v. LV Associates, Inc.* (2011) 197 Cal.App.4th 927, 934 [where a motion is supported by a deficient memorandum, the trial court is justified in denying the motion on procedural grounds]; *Hood v. Gonzales* (2019) 43 Cal.App.5th 57, 73–74 [every brief should contain a legal argument with citation of authorities on the points made and if none is furnished on a particular point, the court may treat it as waived and pass it without consideration].) The Court further finds petitioner failed to authenticate the evidence submitted. (Evid. Code, §§ 1400, 1401.)

Given the Court’s ruling, the Court does not reach the merits of respondent HBT of Winters Highland, LLC’s response and request to vacate; however, the Court reminds respondent of the memorandum page length limitations. (Cal. Rules of Court, rule 3.1113(d) [stating that “no opening or responding memorandum may exceed 15 pages”].) In the future, the Court may decline to consider any argument or legal authority found in pages exceeding the maximum permitted number of pages.

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.